

	Honda Motor Co., Inc.	
	2024-01384148	Continued
13	To vs. Dinh 2025-01517640	Demurrer to Cross-Complaint / Motion to Strike Portions Of Cross-Complaint The unopposed demurrer of cross-defendants Minh Cong To aka Minh Cong and Bau Tran to the cross-complaint of cross-complainants Elite Modern Builders, LLC and Duy Lap Le is sustained with 15 days leave to amend. Cross-Defendants' motion to strike portions of the cross-complaint is therefore moot. Service of the demurrer was timely and good. No opposition was filed. Failure to oppose the demurrer may be construed as having abandoned the claims. <i>See Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 ("Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue."); <i>Quantum Cooking Concepts, Inc. v. LV Associates, Inc.</i> (2011) 197 Cal.App.4th 927, 934 (trial court was justified in denying post-trial motions for failure to provide adequate memorandum; "Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide."). Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. CRC 3.1113(a). Motion to Strike Given the recommendation to sustain the demurrer, the motion to strike is moot. Otherwise, the motion to strike may be granted with leave to amend on the same basis. Moving Party to give notice.